

ONTARIO

SUPERIOR COURT OF JUSTICE

B E T W E E N:

TERRY DENNIS SOPER, ALICE
EVANGELISTA, TERRY LLOYD SOPER
and DINO EVANGELISTA

Plaintiffs

- and -

THE SALVATION ARMY
SCARBOROUGH GRACE HOSPITAL and
DR. ROBERT CURRIDOR, DR. OBODAI
SAI, DR. GARRY E. PRINCE, DR. SAI SUN
NG, DR. ROBERT STUPARYK, P.
DUNCAN, DOROTHY GUNN, JANE OR
JOHN DOE, PETER ALAMANOS,
PATRICIA PAYNE, CAROL LEETHAM,
JANE DOE and JOHN DOE

Defendants

) G.A. Meiklejohn, for the Plaintiffs

) W.D. Black and S.E. Batner, for the
) Defendant Dr. Sai Sun Ng

) **HEARD:** April 10, 11, 12, 13, 16, 17, 19,
) 20, 23, 24, 25, 26, 27, October 9, 2007;
) January 17, 2008 – evidence finished,
) submissions in writing requested;
) November 27, 2008 – received final
) submissions in writing.

SUPPLEMENTARY REASONS RE DAMAGES

STONG J.:

[1] Prior to trial the parties had agreed on the quantum of damages based on the following factors:

- (a) Dr. Ng being found to have fallen below the standard of care;
- (b) that as a result of Dr. Ng's breach of standard of care, all of Mr. Soper's physical disability was caused; and
- (c) schizophrenia is not being taken into account whatsoever.

[2] As found at trial, as a result of Mr. Soper's violent contact with either the window or the floor or both, and before Dr. Ng entered his room, Mr. Soper had suffered an injury to his spine which caused permanent damage to his spinal cord and which has left him with permanent physical disability.

[3] While Mr. Soper suffers from schizophrenia he has been able to control it with medication since 1999.

[4] Notwithstanding the opinion of the expert called on behalf of Dr. Ng, Dr. Joel Jeffries, a leading expert on schizophrenia whose qualifications went unchallenged, that Mr. Soper would in all likelihood be unable to work full time, that full time work for him would be less than five percent and part time work for him would be about another five percent, I am persuaded by the testimony of those who personally know Mr. Soper and his life style.

[5] Dr. Jeffries arrived at his opinion based on statistical data. He does not know Mr. Soper personally, has never spoken to him personally and did not examine Mr. Soper.

[6] The testimony of Alice Evangelista, Mr. Soper's mother, confirms that since his discharge from the hospital there has only been one incident wherein Mr. Soper has not taken his medication for schizophrenia. That was in 1999. She was able to confirm that Mr. Soper is independent and takes care of his banking, his financing, arranges his own appointments with doctors, attends on his needs, orders his own supplies, directs his care, directs house cleaning, laundry and is able to cook for himself and his visitors.

[7] Since his move to his present premises in February of 1999, Mr. Soper has not been observed to suffer from any hallucinations.

[8] Mr. Soper's lifestyle has been such that he has been able to go out on a daily basis, go to church, to the movies and do his shopping.

[9] Mr. Soper testified at trial that since moving to his present premises at 300 Shaw Street, he has been basically able to take care of himself, although he has needed help with bowel care and other personal matters that he could not do on his own.

[10] He said that Dr. Kwong looks after his general physical needs and writes prescriptions for him for his medications and incontinence supplies, and although he has a psychiatrist, Dr. Hoffman, he has not had to see his psychiatrist since July of 2000.

[11] Mr. Soper testified that he is able to spend a lot of time on computers and helps friends in his building. He has designed a web page for a limo company and a web page memorial site for his late grandmother. He does some volunteer work and teaches computer skills to one student. He has been doing that for about a year.

[12] He further testified that but for his physical disability and treatment, he could hold down a job, that he has paralysis from the chest down and both hands do not have good gripping strength.

[13] Mr. Soper testified that he undergoes treatments every second day. He wakes at 5:30 a.m. and requires an attendant to be with him in order to take a suppository to evacuate him. This procedure continues past 9:00 a.m. Since he may have an accident, he stays in bed on treatment day anywhere from 3:00 p.m. to 6:00 p.m.

[14] Residents in the same building as Mr. Soper, Patrick Pharand and Tomamah Abdulwabb confirm that Mr. Soper has very good computer ability, both in terms of programming and trouble shooting.

[15] Dr. Keith Walker, a clinical psychologist, testified that a pre-vocational assessment report was done on Mr. Soper on November 26, 1998. That report concluded that Mr. Soper was functioning intellectually in the average to above-average range, that he had some pronounced areas of strength and a very high aptitude in the area of computers. Dr. Walker also testified that there is no evidence of cognitive deficits.

[16] Dr. Walker recently administered a Millon clinical multi-axial inventory test upon Mr. Soper which is commonly used as a screening test for psychopathology. The results indicated that Mr. Soper has no evidence of thought disorder or major depression. Hence Dr. Walker's conclusion is that the results point to Mr. Soper as being a well functioning individual.

[17] Ms. Joanne Abeles a teacher presently employed at the Lyndhurst Hospital worked with Mr. Soper in 1988 and 1999 and from 2004 to 2007.

[18] While Ms. Abeles found him initially to be withdrawn and complaining that he could not stay focused and appeared to be disoriented and in a very confused state, by 2005 his disposition had improved greatly such that he was more articulate, was able to make eye contact, was always laughing and his work was thoroughly done. She confirmed that his computer skills are excellent as is his interaction with other people, and because of his ability he has been teaching another student basic computers.

[19] Ms. Abeles testified that Mr. Soper is currently attending George Brown College. His writing skills are such that he is able to have his efforts published.

[20] I am satisfied that since August of 1999 Mr. Soper has been prevented from obtaining and maintaining full time employment only because of the physical injuries arising from the spinal cord injury he suffered at the hospital.

[21] The history of Mr. Soper as based on the evidence of those who have known him is much more persuasive than the opinion of Dr. Jeffries whose opinion is based upon statistical data.

[22] The opinions and conclusions of Dr. Walker, formed as a result of a pre-vocational assessment carried out by Lyndhurst Hospital in November of 1998, that Mr. Soper is employable and has very good employment strengths, combined with the observations of Ms. Joanne Abeles respecting Mr. Soper's ability to learn, the results, he has achieved and his writing skills, are all indicators of his ability to work.

[23] Damages are set in accordance with the agreed upon amounts for damages as set out in Schedule A of the submissions on behalf of Dr. Ng, are found to be applicable in this case in their entirety and include the following:

Damages:	Agreed Amounts:
General Damages	\$265,000.00
<i>FLA</i> Alice Evangelista	50,000.00
<i>FLA</i> Terry Lloyd Soper	25,000.00
<i>FLA</i> Dino Evangelista	25,000.00
Past OHIP	907,264.26
Special Damages	6,749.08
Past Loss of Income	318,084.00
Future Loss of Income	770,688.00
Housing	80,000.00

[24] The future care costs are set out as per the agreed amounts as follows:

Damages:	Agreed Amounts:
Future Car Costs:	

Attendant Care:	Initial Outlay	Annual Costs
To Age 40	\$0	\$69,104.00
Age 40 – (last five years of life)	\$0	103,208.00
Last five years of life	\$0	144,592.00
Nursing Care	\$0	1,200.00
Medical and Rehabilitation:		
Physical Therapist	\$0	1,200.00
Occupational Therapy	\$0	720.00
Homemaking	\$0	3,000.00
Transportation	\$28,150.00	3,767.45
Equipment	23,784.00	5,058.94
Bladder Supplies	\$0	10,000.00
Medications:		
Baclofen	\$0	655.50
Ditropan	\$0	461.81
Extra-Strength Tylenol	\$0	51.90
Antibiotics	\$0	100.00
Dulcolax Suppositories	\$0	229.32
Senekot	\$0	29.64
Viagra	\$0	867.75
Vocation/Avocation:		
Avocational Supports	\$6,000.00	\$0
Attendant costs to leisure events	\$0	1,000.00

[25] Submissions as to costs to be limited to two pages, double spaced including Costs Outline and draft Bill of Costs pursuant to form 57A&B, to be submitted to the Trial Coordinator's office at Barrie within 21 days of this date.

STONG J.

Released: February 10, 2009